

ITC(HS), 2022

Schedule 1 Import Policy

Section IV, PREPARED FOODSTUFFS; BEVERAGES, SPIRITS AND VINEGAR; TOBACCO AND MANUFACTURED TOBACCO SUBSTITUTES; PRODUCTS, WHETHER OR NOT CONTAINING NICOTINE, INTENDED FOR INHALATION WITHOUT COMBUSTION; OTHER NICOTINE CONTAINING PRODUCTS INTENDED FOR THE INTAKE OF NICOTINE INTO THE HUMAN BODY

Main Notes			
Sl.No.	Notes	Notification No.	Notification Date
1	In this Section the term "pellets" means products which have been agglomerated either directly bycompression or by the addition of a binder in a proportion not exceeding 3 % by weight.		

Chapter 24 Tobacco And Manufactured Tobacco Substitutes.

Main Notes			
Sl.No.	Notes	Notification No.	Notification Date
1	This Chapter does not cover medicinal cigarettes (Chapter 30).	Notification No. 54/2015-2020	09.02.2022
2	Any products classifiable in heading 2404 and any other heading of the Chapter are to be classified in heading 2404.	Notification No. 54/2015-2020	09.02.2022
3	For the purposes of heading 2404, the expression "inhalation without combustion" means inhalation through heated delivery or other means, without combustion.	Notification No. 54/2015-2020	09.02.2022

Sub-Heading Notes			
Sl.No.	Notes	Notification No.	Notification Date
1	For the purposes of sub-heading 2403 11, the expression "water pipe tobacco" means tobacco intended for smoking in a water pipe and which consists of a mixture of tobacco and glycerol, whether or not contain-ing aromatic oils and extracts, molasses or sugar, and whether or not flavoured with fruit. However, tobacco-free products intended for smoking in a water pipe are excluded from this sub-heading.		
Policy Conditions			
Sl.No.	Notes	Notification No.	Notification Date
1	In terms of General Note 13 of this Schedule, the import of cigarette or any other tobacco product shall be subject to the provisions contained in the Cigarettes and other Tobacco Products (Packaging and Labelling) Amendment Rules, 2009, as notified by the Ministry of Health and Family Welfare (the details can be accessed from the website of the Ministry of Health and Family Welfare: (www.mohfw.nic.in)		
Supplementary Notes			
Sl.No.	Notes	Notification No.	Notification Date
1	"tobacco" means any form of tobacco, whether cured or uncured and whether manufactured or not, and includes the leaf, stalks and stems of the tobacco plant, but does not include any part of a tobacco plantwhile still attached to the earth.		
2	"cut-tobacco" means the prepared or processed cut-to-size tobacco which is generally blended or moisturised to a desired extent for use in the manufacture of machine - rolled cigarettes.		
3	"smoking mixtures for pipes and cigarettes" of sub-heading 2403 10 does not cover " Gudaku".		

Product Description and Import Policy					
HS Code		Description	Import Policy	Policy Condition	Notification No. Notification Date
2401		Unmanufactured tobacco; tobacco refuse.			
240110	-	Tobacco, not stemmed/stripped			
24011010	---	Flue cured virginia tobacco	Free		
24011020	---	Sun cured country (natu) tobacco	Free		
24011030	---	Sun cured virginia tobacco	Free		
24011040	---	Burley tobacco	Free		
24011050	---	Tobacco for manufacture of biris, not stemmed	Free		
24011060	---	Tobacco for manufacture of chewing tobacco	Free		
24011070	---	Tobacco for manufacture of cigar and cheroot	Free		
24011080	---	Tobacco for manufacture of hookah tobacco	Free		
24011090	---	Other	Free		
240120	-	Tobacco, partly or wholly stemmed/stripped			
24012010	---	Flue cured virginia tobacco	Free		

24012020	---	Sun cured country (natu) tobacco	Free
24012030	---	Sun cured virginia tobacco	Free
24012040	---	Burley tobacco	Free
24012050	---	Tobacco for manufacture of biris	Free
24012060	---	Tobacco for manufacture of chewing tobacco	Free
24012070	---	Tobacco for manufacture of cigar and cheroot	Free
24012080	---	Tobacco for manufacture of hookah tobacco	Free
24012090	---	Other	Free
24013000	-	Tobacco refuse	Free
2402		Cigars, cheroots, cigarillos and cigarettes, of tobacco or of tobacco substitutes.	
240210	-	Cigars, cheroots and cigarillos, containing tobacco	
24021010	---	Cigar and cheroots	Free
24021020	---	Cigarillos	Free
240220	-	Cigarettes containing tobacco	
24022010	---	Other than filter cigarettes, of	Free

		length not exceeding 65 millimetres	
24022020	---	Other than filter cigarettes, of length exceeding 65 millimetres but not exceeding 70 millimetres	Free
24022030	---	Filter cigarettes of length (including the length of the filter, the length of filter being 11 millimetres or its actual length, whichever is more) not exceeding 65 millimetres	Free
24022040	---	Filter cigarettes of length (including the length of the filter, the length of filter being 11 millimetres or its actual length, whichever is more) exceeding 65 millimetres not exceeding 70 millimetres	Free
24022050	---	Filter cigarettes of length (including the length of the filter, the length of filter being 11 millimetres or its actual length, whichever is more) exceeding 75 millimetres but not exceeding 85 millimetres	Free
24022090	---	Other	Free
240290	-	Other	
24029010	---	Cigarettes of tobacco substitutes	Free

24029020	---	Cigarillos of tobacco substitutes	Free
24029090	---	Other	Free
2403		Other manufactured tobacco and manufactured tobacco substitutes; homogenised or reconstituted tobacco; tobacco extracts and essences.	
240311	-	Smoking tobacco, whether or not containing tobacco substitutes in any proportion -- Water pipe tobacco specified in Subheading Note 1 to this chapter	
24031110	---	Hookah or gudaku tobacco	Free
24031190	---	Other	Free
240319	-	Smoking tobacco, whether or not containing tobacco substitutes in any proportion -- Other	
24031910	---	Smoking mixtures for pipes and cigarettes	Free
24031921	---	Biris:---- Other than paper rolled biris, manufactured without the aid of machine	Free
24031929	---	Biris:---- Other	Free
24031990	---	Other	Free

24039100	-	Other : -- Homogenised or reconstituted tobacco	Free			
240399	-	Other : -- Other				
24039910	---	Chewing tobacco	Free			
24039920	---	Preparations containing chewing tobacco	Free			
24039930	---	Jarda scented tobacco	Free			
24039940	---	Snuff	Free			
24039950	---	Preparations containing snuff	Free			
24039960	---	Tobacco extracts and essence	Free			
24039970	---	Cut-tobacco	Free			
24039990	----	Other	Free			
2404		PRODUCTS CONTAINING TOBACCO, RECONSTITUTED TOBACCO, NICOTINE, OR TOBACCO OR NICOTINE SUBSTITUTES, INTENDED FOR INHALATION WITHOUT COMBUSTION; OTHER NICOTINE CONTAINING PRODUCTS INTENDED FOR THE INTAKE OF NICOTINE INTO THE HUMAN BODY				
24041100	-	Products intended for inhalation without combustion;-- Containing tobacco or	Prohibited	Import of electronic cigarettes (e-cigarettes) or any parts or components thereof such as	54/2015-2020	09/02/2022

		reconstituted tobacco		refill pods, atomisers, cartridges etc, including all forms of Electronic Nicotine Delivery Systems, Heat Not Burn Products, e-Hookah and the like devices by whatever name and shape, size or form it may have, but does not include any products licensed under the Drugs and Cosmetics Act, 1940 is Prohibited in accordance with the Prohibition of Electronic Cigarettes' (Production, Manufacture, Import, Exports, Transport, Sale, Distribution, Storage and Advertisement) Act, 2019		
24041200	-	Products intended for inhalation without combustion:-- Other, containing nicotine	Prohibited	Import of electronic cigarettes (e-cigarettes) or any parts or components thereof such as refill pods, atomisers, cartridges etc, including all forms of Electronic Nicotine Delivery Systems, Heat Not Burn Products, e-Hookah and the like devices by whatever name and shape, size or form it may have, but does not include any products licensed under the Drugs and Cosmetics Act, 1940 is Prohibited in accordance with the Prohibition of Electronic Cigarettes' (Production, Manufacture, Import, Exports, Transport, Sale, Distribution, Storage and Advertisement) Act, 2019	54/2015-2020	09/02/2022

24041900	-	Products intended for inhalation without combustion:-- Other	Prohibited	Import of electronic cigarettes (e-cigarettes) or any parts or components thereof such as refill pods, atomisers, cartridges etc, including all forms of Electronic Nicotine Delivery Systems, Heat Not Burn Products, e-Hookah and the like devices by whatever name and shape, size or form it may have, but does not include any products licensed under the Drugs and Cosmetics Act, 1940 is Prohibited in accordance with the Prohibition of Electronic Cigarettes' (Production, Manufacture, Import, Exports, Transport, Sale, Distribution, Storage and Advertisement) Act, 2019	54/2015-2020	09/02/2022
24049100	-	Other:- - For oral application	Free		54/2015-2020	09/02/2022
24049200	-	Other:- - For transdermal application	Free		54/2015-2020	09/02/2022
24049900	-	Other:- - Other	Free		54/2015-2020	09/02/2022